



CHAPTER xxvii.

An Act to authorise the Port of London Authority to acquire compulsorily lands in the city of London and for other purposes. A.D. 1911.
[2nd June 1911.]

WHEREAS by the Port of London Act 1908 (hereinafter called "the Act of 1908") the Port of London Authority (hereinafter called "the Port Authority") was established for the purpose of administering preserving and improving the Port of London and otherwise for the purposes of the said Act:

And whereas the Port Authority were empowered inter alia to acquire erect furnish and equip buildings and offices and it is expedient that the Port Authority should be authorised to acquire the lands hereinafter in this Act mentioned for the purposes of erecting offices or otherwise for the purposes of the Act of 1908:

And whereas plans of the lands to be purchased or acquired by compulsion under the powers of this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands were duly deposited for public inspection with the clerk of the peace for the county of London and the clerk of the peace for the city of London and the said plans and book of reference respectively are in this Act referred to as the deposited plans and book of reference:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and

A.D. 1911. Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short title.

1. This Act may be cited as the Port of London Act 1911.

Incorporation of Lands Clauses Acts.

2. The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845) so far as the same are applicable for the purposes of and not inconsistent with or varied by this Act are hereby incorporated with and form part of this Act:

Provided that notwithstanding anything contained in the Lands Clauses Consolidation Act 1845 any claim for compensation under this Act or any Act incorporated herewith by any person having or claiming in respect of any interest in the lands in respect of which compensation is claimed not greater than that of a lessee or tenant for any term of which not more than eighteen months remain unexpired at the time when the claim is made shall be determined by justices in the manner provided by section 121 of the Lands Clauses Consolidation Act 1845.

Interpretation.

3. In this Act the several words and expressions to which by the Acts wholly or partially incorporated herewith meanings are assigned have in this Act the same respective meanings unless there be in the subject or context something repugnant to or inconsistent with such construction:

Provided that for the purposes of this Act the expressions “the promoters of the undertaking” and “the company” in the Lands Clauses Acts shall be construed to mean the Port Authority.

Power to acquire lands for offices and buildings.

4. Subject to the provisions of this Act the Port Authority for the purposes of erecting offices and buildings for the conduct of the business of the Port Authority or otherwise for the purposes of the Act of 1908 may purchase take and hold the lands in the parish of the city of London in the city of London and county of London hereinafter described which are delineated on the deposited plans and described in the deposited book of reference (viz.):—

(a) Houses and premises known respectively as Nos. 5 10 11 and 12 Savage Gardens;

(b) Houses and premises known respectively as Nos. 5 6 7 8 9 and 10 Trinity Square;

- (c) House and premises known as No. 1 Muscovy Court; A.D. 1911.
 (d) House and premises known as Muscovy House;
 (e) Courtyard and premises known as Muscovy Court leading from Trinity Square and situate between Muscovy House and No. 6 Trinity Square.

5. The Port Authority may at any time after they have acquired the houses and premises known as No. 1 Muscovy Court Muscovy House and No. 6 Trinity Square stop up and discontinue for public and other traffic Muscovy Court and thereupon all rights of way and other public rights over the same shall be absolutely extinguished and the site and soil thereof shall vest in the Port Authority freed and discharged from all such rights and liabilities:

Stopping up
Muscovy
Court.

Provided that if the Port Authority under the powers of this section permanently stop up Muscovy Court they shall forthwith give notice thereof in writing to the London County Council.

6. All private rights of way over any lands which shall under the powers of this Act be acquired compulsorily shall as from the date of such acquisition be extinguished Provided that the Port Authority shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

As to private
rights of way
over lands
taken com-
pulsorily.

7. The Port Authority may for any purposes upon the lands acquired by them under the powers of this Act and also in Muscovy Court when the same shall have been stopped up under the powers of this Act stop up and remove or raise sink or alter the position of any drain or sewer watercourse water pipe or gas pipe and also any post pipe tube wire or apparatus laid down or placed for telegraphic telephonic or other purposes and any electric pipes posts tubes wires or apparatus laid down or placed for supplying electricity and may remove any other obstruction:

As to stop-
ping up and
alteration of
sewers pipes
&c.

Provided that the Port Authority shall not remove raise sink or otherwise alter the position of any pipe post tube wire or apparatus laid down or placed for telegraphic telephonic or other purposes or other apparatus belonging to the Postmaster-

A.D. 1911. General except in accordance with and subject to the provisions of the Telegraph Act 1878.

Correction of errors &c. in deposited plans and book of reference.

8. If any omission mis-statement or erroneous description shall have been made of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or described in the deposited book of reference the Port Authority may after giving ten days' notice to the owners lessees and occupiers of the lands affected by such proposed corrections apply to two justices acting for the city of London for the correction thereof and if it shall appear to the justices that such omission mis-statement or erroneous description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of any such omission and in what respect any such matter shall have been mis-stated or erroneously described and such certificate shall be deposited with the clerk of the peace for the county of London and the clerk of the peace for the city of London and shall be kept by such clerks of the peace respectively with the other documents to which it relates and thereupon such deposited plans and book of reference shall be deemed to be corrected according to such certificate and the Port Authority may take the lands in accordance with such certificate.

Power to Port Authority to enter upon property for survey and valuation.

9. The Port Authority and their surveyor or other officer and any person duly authorised in writing under the hand of the general manager or secretary of the Port Authority may from time to time at all reasonable times in the day upon giving in writing for the first time twenty-four hours' and afterwards from time to time twelve hours' previous notice enter upon and into the lands and buildings by this Act authorised to be taken or any of them for the purpose of surveying and valuing the said lands and buildings without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands and buildings.

Compensation in case of recently altered buildings acquired by Port Authority.

10. In settling any question of disputed purchase money or compensation payable under this Act by the Port Authority the court or person settling the same shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the lands created after the first day of November one thousand nine hundred and ten if in the opinion of such court or person the improvement alteration

or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act. A.D. 1911.

11. The tribunal to whom any question of disputed purchase money or compensation under this Act is referred shall if so required by the Port Authority award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Port Authority by the claimant giving sufficient particulars and in sufficient time to enable the Port Authority to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time shall have been delivered and that the Port Authority have been prejudiced thereby the tribunal shall have power to decide whether the claimant's costs or any part thereof shall be borne by the claimant. Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Port Authority to amend the statement in writing of the claim delivered by him to the Port Authority in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the Port Authority if they object to the amendment and such amendment shall be subject to such terms enabling the Port Authority to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case. Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation Act 1845 either contained or was endorsed with a notice of the effect of this section.

Costs of arbitration in certain cases.

12. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Port Authority any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Persons under disability may grant easements &c.

A.D. 1911.

Power to
Port Authority to make
agreements
with owners
of property
&c.

13. The Port Authority may subject to the provisions of this Act enter into and carry into effect agreements with any person being the owner of or interested in any lands houses or property adjoining the lands by this Act authorised to be acquired with respect to the sale by the Port Authority to such person of any lands or property for such consideration as may be agreed upon between the Port Authority and such person and the Port Authority may accept as satisfaction of the whole or any part of such consideration the grant by such person of any lands or other property required by the Port Authority for the purposes of this Act.

Limitation
of time for
purchase of
lands.

14. The powers of the Port Authority for the compulsory purchase or taking of lands for the purposes or under the powers of this Act shall cease after the expiration of three years from the passing of this Act.

As to ad-
vancement
or setting
back of line
of buildings
adjoining
streets

15. It shall be lawful for the Port Authority on the one hand and the mayor and commonalty and citizens of the city of London (hereinafter called "the corporation") in reference to any street or land in the city of London and the London County Council in reference to any street or land in the metropolitan borough of Stepney on the other hand or any or either of them to enter into and carry into effect agreements with respect to the advancement or setting back of the line of buildings abutting on any street adjoining the lands to be acquired under this Act and it shall be lawful for the Port Authority the corporation and the mayor aldermen and councillors of the metropolitan borough of Stepney (hereinafter referred to as "the Stepney Borough Council") or any or either of them to enter into and carry into effect agreements with respect to the transfer to such authorities or either of them for the purposes of being thrown into any such street of any lands to be acquired as aforesaid in exchange for any portion of the street which may become disused owing to the advancement of such building line and the corporation or the Stepney Borough Council may in connection with or as part of any such agreement as aforesaid transfer to the Port Authority portions of any street as aforesaid free from any public or other rights.

Saving pro-
visions of
London Build-
ing Acts 1894
to 1909.

16. Nothing in this Act shall exempt any offices or buildings erected by the Port Authority on lands acquired by them for the purpose of this Act from the provisions of the

[1 & 2 GEO. 5.] *Port of London Act, 1911.* [Ch. xxvii.]

London Building Acts 1894 to 1909 and any Act amending A.D. 1911.
the same.

17. All costs and expenses of the Port Authority in the execution of this Act and the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act shall be defrayed by the Port Authority as expenses in carrying out the powers and duties of the Port Authority under the Act of 1908.

As to payments under this Act.

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